

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ariel Courage	Team: Squad #06	CCRB Case #: 201602711	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 03/08/2016 9:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 9/8/2017	Precinct: 10		
Date/Time CV Reported Tue, 03/29/2016 3:50 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Tue, 03/29/2016 3:50 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Amar Bhairam	01383	948668	010 PCT
2. SGT Spencer Garrett	05074	938538	PSA 4
3. POM Frank Zappulla	30452	937783	PSA 4
4. SGT Salvador Duran	04704	932584	PSA 4

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. LT Edward Bullock	00000	911613	010 PCT
2. SGT James Lamb	04725	904314	010 PCT
3. POM Edward Testa	28538	929245	010 PCT
4. POM Nicholas Rizzo	19328	954278	PSA 4
5. POF Tamarah Pinckney	30612	940584	010 PCT
6. POM Hugo Paiz	25558	946527	010 PCT
7. POM Scott Williams	22012	943959	010 PCT
8. POM Brian Abuyen	21504	934363	010 PCT
9. POM Mariusz Jasiurkowski	20843	941949	PSA 4
10. POM Christophe Ogarro	04355	942286	PSA 4
11. POM Sean Carroll	10931	946831	PSA 4
12. POM Jason Pulver	27393	951089	PSA 4
13. POM Jonathan Suero	23460	951308	PSA 4
14. POM Raymundo Fermin	25506	947750	PSA 4
15. SGT Harry Pakiakis	4484	939165	PSA 4

Officer(s)	Allegation	Investigator Recommendation
A . SGT Salvador Duran	Abuse: Sergeant Salvador Duran stopped § 87(2)(b) and individuals.	A . Substantiated
B . SGT Salvador Duran	Abuse: Sergeant Salvador Duran supervised the frisks of § 87(2)(b) and individuals.	B . Substantiated

Officer(s)	Allegation	Investigator Recommendation
C . SGT Spencer Garrett	Abuse: Sergeant Spencer Garrett supervised the frisks of § 87(2)(b) and individuals.	C . Substantiated
D . SGT Salvador Duran	Abuse: Sergeant Salvador Duran detained § 87(2)(b) and individuals.	D . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

This case exceeded the 90-day benchmark due to officers missing multiple scheduled appointments and the necessity of interviewing large number of officers.

On March 29, 2016, § 87(2)(b) provided an in-person statement for CCRB case § 87(2)(b), during which he made additional allegations about a separate incident. These additional allegations form the basis of this complaint.

On March 8, 2016, at approximately 8:10 p.m., § 87(2)(b)'s friend, § 87(2)(b) was shot in front of § 87(2)(b), which is part of the § 87(2)(b). Numerous officers of the 10th Precinct and of PSA 4 responded (BR 01).

§ 87(2)(b) gathered with approximately five to seven of his friends in front of § 87(2)(b), a nearby building. § 87(2)(b) could identify only some of these friends: § 87(2)(b) and § 87(2)(b). There was another individual present known to § 87(2)(b) only as "§ 87(2)(b)".

At approximately 9 p.m., while standing in front of that location, several officers from PSA 4, identified by the investigation as Sgt. Salvador Duran, Sgt. Spencer Garrett, PO Raymundo Fermin, PO Frank Zappulla, and PO Jonathan Suero, approached § 87(2)(b) and his friends.

Sgt. Duran supervised the stop of § 87(2)(b) and unidentified individuals (**Allegation A**). Sgt. Duran and Sgt. Garrett supervised the frisks of § 87(2)(b) and individuals (**Allegations B and C**). Sgt. Duran detained § 87(2)(b) and individuals by transporting them back to the 10th Precinct stationhouse (**Allegation D**). This incident resulted in the arrest of § 87(2)(b) who was found to have an open warrant (BR 02). No other arrests were made and no summonses were issued.

§ 87(2)(g), § 87(4-b)

The investigation was unable to obtain video footage of this incident.

Mediation, Civil and Criminal Histories

- This complaint was not eligible due to § 87(2)(b)'s arrest.
- As of June 24, 2016, § 87(2)(b) has not filed a Notice of Claim with respect to this incident (BR 03).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- § 87(2)(b) has filed one other CCRB complaint (BR 07):
 - § 87(2)(b)

- Sgt. Duran has been a member of the service for 12 years. There are 16 previous allegations against him stemming from 11 cases, none of which were substantiated.
- Sgt. Garrett has been a member of the service for 11 years. There are four previous allegations against him stemming from three cases, one of which was substantiated:
 - In CCRB case 201202863, an allegation of premises entered and/or searched was substantiated. The Board recommended charges and the NYPD Disposition is pending.

Potential Issues

- Due to initial confusion regarding the incident location, video footage was obtained from NYCHA for § 87(2)(b), which did not depict the incident. After § 87(2)(b) clarified the incident location in his CCRB interview, a second subpoena for video footage from the updated address was requested. By the time the second subpoena was served, video footage from the location had been expunged (BR 08). As such, there is no video footage of this encounter.
- The investigation was unable to obtain a sworn statement from § 87(2)(b). On April 4, 2016, § 87(2)(b) provided a telephone statement (BR 09). § 87(2)(b) refused to schedule an in-person statement, as he wanted to take time to think about whether or not he wanted to pursue a complaint. On April 8, 2016, upon contacting § 87(2)(b) a second time, § 87(2)(b) declined to provide an in-person statement as he had no interest in pursuing any complaint about it.
- On May 6, 2016, on the second attempt to reach § 87(2)(b) the investigation established contact with § 87(2)(b) who provided a telephone statement (BR 10). Like § 87(2)(b) § 87(2)(b) said he was uncertain about providing an in-person statement and wanted more time to think about it, promising to call the CCRB back. § 87(2)(b) did not contact the CCRB as promised. Between May 23, 2016, and June 16, 2016, three additional calls and two please-call letters were sent to § 87(2)(b).
- § 87(2)(b) was unable to provide any contact information for § 87(2)(b) or § 87(2)(b). Attempts to obtain information for these individuals through applicable searches and police documentation returned negative results. In the absence of any means by which to contact these individuals, no statements could be obtained from them.

Findings and Recommendations

Explanation of Subject Officer Identification

- § 87(2)(b) described the officer he saw approach § 87(2)(b) and § 87(2)(b) from inside § 87(2)(b) as a Hispanic male, 5'8" tall to 5'9" tall, in his late 20s to early 30s, with heavy build, and in plainclothes. PO Fermin, a Hispanic male, § 87(2)(b), with black hair and brown eyes, who was dressed in plainclothes at the time of this incident, and who acknowledged that he approached the group from § 87(2)(b), most closely matches the provided description (BR 11). Although § 87(2)(b) did not observe this, both PO Fermin and his partner, Sgt. Garrett, acknowledged that they approached the group from inside of § 87(2)(b). As a light-skinned black male, § 87(2)(b), with black hair and brown eyes, Sgt. Garrett could also loosely match the provided description (BR 12). § 87(2)(g)

- § 87(2)(g)
- § 87(2)(b) said that after he observed PO Fermin approach § 87(2)(b) and § 87(2)(b) he, § 87(2)(b) and § 87(2)(b) were approached by three police officers. § 87(2)(b) described one of these police officers as a light-skinned black male, approximately 6'5" tall, with slim to muscular build, in his mid-20s, and in plainclothes. PO Suero, a dark-complexioned Hispanic male, § 87(2)(b), with black hair, brown eyes (BR 13), who was dressed in plainclothes at the time of this incident, and who acknowledged approaching the group of males from the front of § 87(2)(b), most closely matches the provided description. § 87(2)(b) described the second officer as a white or Hispanic male, 5'7" tall, with heavy build, in his mid to late 20s, and in plainclothes. PO Zappulla, a white male, § 87(2)(b), with brown hair and eyes, most closely matches this description (BR 14). Finally, § 87(2)(b) described the third officer as a white or Hispanic male with spiky black hair, in his early 30s, around 5'10" tall. Sgt. Duran, a Hispanic male, § 87(2)(b), with brown hair and eyes, most closely matches this description (BR 15). § 87(2)(g)
 - § 87(2)(b) alleged that the officer matching PO Suero's description frisked him and obtained his identification, and then in turn frisked § 87(2)(b) § 87(2)(b) described the officer who performed the frisk as more closely matching the description provided of Sgt. Duran. PO Suero and PO Zappulla denied that any frisks were conducted; Sgt. Duran said that he walked away from the scene for a few minutes and did not see if any frisks were conducted or not; Sgt. Garrett and PO Fermin both said that PO Suero and PO Zappulla performed frisks, and that Sgt. Garrett and PO Fermin might have also frisked some of these individuals, though they could not specifically remember. § 87(2)(g)
 - Sgt. Duran said it was his decision to transport these males back to the 10th Precinct stationhouse. § 87(2)(g)
 - § 87(2)(g), § 87(4-b)

Allegation A – Abuse of Authority: Sergeant Salvador Duran stopped § 87(2)(b)

and individuals.

Allegation B – Abuse of Authority: Sergeant Salvador Duran supervised the frisks of § 87(2)(b) **and individuals.**

Allegation C – Abuse of Authority: Sergeant Spencer Garrett supervised the frisks of
§ 87(2)(b) **and individuals.**

It is undisputed that § 87(2)(b)'s friend, § 87(2)(b), was shot on March 8, 2016, at approximately 8:15 p.m., in the vicinity of § 87(2)(b) in Manhattan, part of the § 87(2)(b); see the UF-49 (BR 01), the EVENT materials (BR 16), and the communications CD (BR 17 and 18). It is undisputed that in the course of the shooting investigation, multiple officers from PSA 4 approached § 87(2)(b) and several of his friends, including § 87(2)(b) and another, unidentified individual, § 87(2)(g).

§ 87(2)(b) (BR 19) said that after § 87(2)(b) was shot, § 87(2)(b) went to the scene of the shooting to see if he might be able to accompany § 87(2)(b) to the hospital. Officers refused to allow § 87(2)(b) to accompany § 87(2)(b) to the hospital, so § 87(2)(b) moved away from the scene of the shooting to go sit in a park in front of § 87(2)(b) with two of his friends, § 87(2)(b) and § 87(2)(b). § 87(2)(b) lives at § 87(2)(b), but § 87(2)(b) and § 87(2)(b) do not. § 87(2)(b)'s other friends, § 87(2)(b) and an individual known to § 87(2)(b) only as "§ 87(2)(b)" were also present, but standing closer to the front entrance of § 87(2)(b). § 87(2)(b) did not know where § 87(2)(b) and "§ 87(2)(b)" live.

While § 87(2)(b) was sitting in the park, he saw an officer, identified by the investigation as either PO Fermin or Sgt. Garrett, emerge from the basement of § 87(2)(b) and approach § 87(2)(b) and "§ 87(2)(b)" where they were standing in front of the building. § 87(2)(b) could not hear what was said, but saw § 87(2)(b) and "§ 87(2)(b)" all turn to face the wall.

§ 87(2)(b) did not see further what occurred with § 87(2)(b) and "§ 87(2)(b)" as he was then approached by three police officers, identified by the investigation as Sgt. Duran, PO Suero, and PO Zappulla. PO Suero asked, "Who lives in this building?" § 87(2)(b) replied, "I do." PO Suero requested § 87(2)(b)'s identification, which § 87(2)(b) provided. PO Suero then frisked § 87(2)(b) by patting his midsection, legs, and the exterior of his pockets. PO Suero then frisked and obtained the identification of § 87(2)(b). § 87(2)(b) did not see what interaction § 87(2)(b) had with officers, but believed that § 87(2)(b) told them he was not carrying identification. § 87(2)(b) heard PO Suero, PO Zappulla, and Sgt. Duran say that they were checking § 87(2)(b)'s name using an app on their phone, and that § 87(2)(b) would be arrested as he had been found to have an open warrant. An officer – § 87(2)(b) – could not tell which – then handcuffed § 87(2)(b).

PO Suero told § 87(2)(b) and § 87(2)(b) that they needed to wait for his Sergeant to arrive. Initially § 87(2)(b) felt that he was free to go, as the officers told him that no warrants had been found for him and that he was not under arrest, but it took a long time, or about 30 to 40 minutes, and eventually § 87(2)(b) began to feel that he was not free to go. § 87(2)(b) asked PO Suero why he was not free to go if he was not under arrest and PO Suero brushed him off by telling him that the Sergeant would be there soon.

After 30 or 40 minutes, a marked police van arrived to the scene. PO Suero, PO Zappulla, and Sgt. Duran instructed § 87(2)(b) and "§ 87(2)(b)" to enter the police van. When § 87(2)(b) asked why he had to go, PO Zappulla replied, "Either you can walk with us willingly or we're taking you in handcuffs." § 87(2)(b) then entered the van. They were driven back to the 10th Precinct stationhouse.

Upon arrival at the 10th Precinct stationhouse, § 87(2)(b) and § 87(2)(b) were all placed in a room at the rear of the stationhouse on the first floor. An unidentified uniformed officer made them write their names on piece of paper. An unidentified plainclothes officer then entered the room, made some comments about the shooting of § 87(2)(b)'s friend, and took down the pedigree information of each civilian before releasing them. § 87(2)(b) was the second individual to be released after § 87(2)(b) § 87(2)(b) was not arrested and was not issued summonses, nor was any other civilian, except for § 87(2)(b).

§ 87(2)(g) § 87(2)(b) said that he was standing in the park with § 87(2)(b) and § 87(2)(b) while § 87(2)(b) and § 87(2)(b) were standing at some remove, closer to the entrance of the building, when they were approached by a group of police officers. One of these officers, who § 87(2)(b) described as a white male, 5'9" to 5'10" tall, in his 30s, with spiky black hair – which matches the description of either Sgt. Duran or PO Zappulla – approached § 87(2)(b) and § 87(2)(b) while another officer, described as a light-skinned black male, around 6'1" to 6'2" tall, 25 to 26 years old, and slim build – which matches the description of PO Suero – approached § 87(2)(b). Two further officers, one of whom § 87(2)(b) described as a dark-complexioned Hispanic male in his 30s, around 5'8" to 5'9" tall, with chubby build, which matches the description of Sgt. Garrett, in conjunction with another officer who § 87(2)(b) could not in any way describe, approached § 87(2)(b) and § 87(2)(b) saw § 87(2)(b) and § 87(2)(b) both turn and place their hands against the wall of § 87(2)(b).

The officer matching PO Zappulla's or Sgt. Duran's description asked § 87(2)(b) and § 87(2)(b) where they were from. When § 87(2)(b) said he was from the Bronx, PO Zappulla or Sgt. Duran asked, "What are you doing here?" PO Zappulla or Sgt. Duran told them that there had been a shooting, and asked what they were doing outside. PO Zappulla or Sgt. Duran then patted down § 87(2)(b) s and § 87(2)(b) s torso, arms, and legs. PO Suero then approached and requested § 87(2)(b) s and § 87(2)(b) s identifications, which they provided. Eventually § 87(2)(b) and § 87(2)(b) all came to be standing in front of the building, though § 87(2)(b) did not specify how. The officers told the group that they were waiting for their "Sergeant" or "lead detective." They were waiting in front of the building for approximately one hour before a marked police van arrived and brought them back to the 10th Precinct stationhouse. § 87(2)(b) did not hear any officer tell § 87(2)(b) that he could either enter the van or go back to the 10th Precinct stationhouse in handcuffs.

As was previously discussed, § 87(2)(b) never provided an in-person statement.

§ 87(2)(g) § 87(2)(b) said that he was with approximately six other friends standing on the north side of § 87(2)(b). § 87(2)(b) could not identify any of these friends aside from § 87(2)(b) and § 87(2)(b). Approximately four officers approached them. One of these officers, who § 87(2)(b) described as a Hispanic male, over 6'0" tall, in his 20s, with short dark hair and in plainclothes – which matches the description of both PO Suero and Sgt. Duran – approached and said, "Do y'all got ID?" § 87(2)(b) was found to have a warrant and was handcuffed. § 87(2)(b) did not see any officers frisk any of his friends.

The officers then had § 87(2)(b) and his friends wait for approximately an hour before a marked police van arrived. The officers explained that they were waiting for their supervisor, but did not provide any other explanation. § 87(2)(b) and his friends did not complain about the wait, attempt to leave, or express any desire to leave, but did ask why they were waiting. No officer responded to these questions.

A marked police van then arrived. § 87(2)(b) and his friends walked over to the marked van. Officers walked with them to the van. When asked if he ever heard an officer tell § 87(2)(b) that he could either come to the 10th Precinct stationhouse willingly or in handcuffs, § 87(2)(b) said that he did, but could not tell which officer made this statement.

As was previously discussed, the investigation was not able to establish contact with § 87(2)(b) or any of the other individuals who may have been stopped.

Sgt. Duran (BR 20 and 21) said that he responded to the scene of the shooting. Sgt. Duran has worked in PSA 4 for approximately two years. Sgt. Duran was familiar with the victim of the shooting, § 87(2)(b), having dealt with him on several occasions in the six months leading up to this incident for “disorderly conduct” situations, such as house parties or barbeques in the § 87(2)(b). Sgt. Duran had never arrested § 87(2)(b) before, but believed he may have been involved in a gang, the name of which he could not recall, in the § 87(2)(b) with ties to the § 87(2)(b) § 87(2)(b)

When Sgt. Duran arrived to the scene, there were numerous officers from the 10th Precinct and PSA 4 already present. Sgt. Duran began aiding officers in establishing the crime scene on the south side of § 87(2)(b). As Sgt. Duran did so, an unidentified female approached Sgt. Duran. The female lived in the development, and needed to cross the crime scene to reach her apartment. While waiting to cross the crime scene, the female pointed to a group of approximately seven males who were standing directly at the entrance to § 87(2)(b), and told Sgt. Duran in Spanish that these males had been present at the scene of the shooting. Sgt. Duran did not note any information for this female, but did tell her that the Patrol Supervisor of the day, Sgt. Pakiakakis, or the 10th Precinct Detective Squad would probably like to speak with her, and believed it was possible her pedigree information was obtained by a different officer.

When the female pointed out this group of males, Sgt. Duran observed them. There were approximately seven or eight of them all gathered at the front entrance to § 87(2)(b). All seven or eight appeared to be coming in and out of § 87(2)(b); one of them would hold the door open while the rest of them would move repeatedly in and out of the lobby. Sgt. Duran did not see how the males gained access to the building in the first place. Sgt. Duran recognized a few of these males as friends of § 87(2)(b) having seen them with § 87(2)(b) in the development before. Sgt. Duran recognized these individuals by sight but not by name. Sgt. Duran reviewed the CCRB photograph of § 87(2)(b) who he confirmed that he recognized both from seeing him around the development on prior occasions and from seeing him amongst the seven or eight males during this incident, though Sgt. Duran did not believe he had ever interacted with § 87(2)(b)

Sgt. Duran moved from the south side of § 87(2)(b) to its north side to observe the group. As the group held the doors open for each other, they were obstructing other pedestrians

from coming in and out of the building. Sgt. Duran could hear approximately three or four pedestrians who were either coming in or out of the building make comments to the group, such as, “Excuse me.” Sgt. Duran eventually told his partner, PO Suero, “These guys are blocking pedestrian traffic. Let’s go talk to them.” Sgt. Duran also suspected that some of these males were trespassing from his prior experience with them, as he knew some of them resided in either Brooklyn or the Bronx.

Sgt. Duran estimated that he was observing the group for approximately three minutes before he decided to approach them. Sgt. Duran wished to speak with them to see if they knew anything about the shooting. Sgt. Duran could also have issued each of them a summons for disorderly conduct: obstructing pedestrian traffic, or arrested them for trespassing in a NYCHA building.

When Sgt. Duran approached the group, all seven or eight of them were standing together immediately in front of the entrance of § 87(2)(b). Sgt. Duran informed the group that their friend had been shot. The group collectively responded by nodding and saying, “Yeah.” No member of the group explicitly acknowledged that they had been present at the scene of the shooting, but based upon their apparent acknowledgement that their friend had been shot, and the unidentified female’s indication that they had been present, Sgt. Duran believed they may well have been. Sgt. Duran asked the group if any of them lived in the building, or had family members in the building. The group responded, “No.” Sgt. Duran told PO Suero and the other officers that he approached with, including Sgt. Garrett, PO Fermin, and PO Zappulla, to begin requesting their identifications. Sgt. Duran did not ask the group any other questions.

Sgt. Duran then walked away from the group and went to go speak to the Patrol Supervisor, Sgt. Pakiakis, who at that time was still on the southern side of § 87(2)(b) by the crime scene. Sgt. Duran notified Sgt. Pakiakis that he had a group of § 87(2)(b) friends at the scene and that Sgt. Pakiakis might want to notify the Squad in regards. Sgt. Pakiakis appeared to agree with Sgt. Duran. Sgt. Duran spoke to Sgt. Pakiakis for a few minutes before returning to the northern side of § 87(2)(b). Sgt. Duran did not speak directly to the Detective squad that he could recall. Sgt. Duran has responded to many other incidents similar to this, and found that generally the Detective squad would want to speak to individuals who knew the victim in regards to the shooting.

When Sgt. Duran returned, PO Suero informed Sgt. Duran that one of the men had been found to have an open warrant. Sgt. Duran did not personally obtain the identifications of any of these civilians. Sgt. Duran did not frisk, or observe any officer frisk, any of these individuals. Sgt. Duran asked the group if they would provide the officers with any information about what happened, and told them that the Detective squad would probably want to speak with them sooner or later about what happened, but that if they spoke to the Detective squad now, they could all do so collectively. When the group was informed that they could all go to the 10th Precinct stationhouse together, they all generally agreed to go back. Sgt. Duran initially said that some members of the group seemed more reluctant than others, but later said that none of the males seemed in any way reluctant. Sgt. Duran’s sole motivation in bringing these males back to the 10th Precinct stationhouse was to gather information. Sgt. Duran had such limited information about the shooting at the time he was speaking to the group that he had not formed any suspicion that any member of the group was involved in the shooting. Sgt. Duran did not suspect that any member of the group was armed; Sgt. Duran felt that if these males were armed, they probably would not be calm or agree to “hang out” with officers, and so he felt comfortable that they were not armed.

Sgt. Duran was never waiting on scene for another supervisor to come. Once the group agreed to speak to the squad, Sgt. Duran requested via radio for a van to come to the scene. Sgt. Duran estimated that they were waiting approximately 15 minutes for the van to arrive. During that time, no member of the group complained about the wait, or asked why they had to go to the 10th Precinct stationhouse if they were not under arrest. Sgt. Duran never told any member of the group that they were just waiting for a supervisor, who would be there soon. Sgt. Duran did not tell the group that they could not leave. Sgt. Duran never told the group that they could leave, as none of the civilians ever asked if they could, or otherwise expressed a desire to leave.

Once the van arrived, officers walked with the group over to the van. No officer made physical contact with any member of the group as they moved over to the van, except one officer, who was holding the male who had been found to have an open warrant and who was consequently considered to be under arrest. Sgt. Duran never heard any of the individuals in the group at this time ask why they had to go back to the 10th Precinct stationhouse. Sgt. Duran never told any member of the group that they could either go to the 10th Precinct stationhouse willingly or in handcuffs. Sgt. Duran remained at the crime scene and did not go back to the 10th Precinct stationhouse with the group of males.

Sgt. Garrett (BR 22) said that he responded to the scene of the shooting. While on scene, Sgt. Duran approached him and informed him that a passerby had noted a group of individuals standing across the street who had been outside of the location at the time of the shooting, and who had run away from the location. Sgt. Duran communicated nothing else about this group to Sgt. Garrett. Sgt. Garrett then observed a group of seven or eight males standing directly in front of § 87(2)(b).

Sgt. Garrett and his partner, PO Fermin, approached the group by walking through the rear of § 87(2)(b) to its front. Other officers, including PO Suero and PO Zappulla, approached the group from the front of the building. Sgt. Garrett upon approach asked the group of individuals investigative questions about the shooting, specifically if any of them had been outside earlier, or if any of them had seen this incident, or heard anything about it, or if they were involved, to try to ascertain as much information as possible about the shooting. Sgt. Garrett asked if they were involved because he thought it was possible that they had been, given that a pedestrian had said she had seen them fleeing the scene of the shooting. Sgt. Garrett otherwise had no reason to believe that any member of the group was involved in the shooting.

The group replied to Sgt. Garrett by stating, "It's none of your business. It doesn't matter. Why are you even over here? The problem is across the street," and other comments of that nature. Sgt. Garrett then began to request their identifications. Some of the officers with whom Sgt. Garrett approached began to frisk some members of the group. Sgt. Garrett believed that these frisks were conducted because "someone had just been shot," and because Sgt. Garrett had some indication that they had been at the scene of the shooting. Sgt. Garrett otherwise had no indication that any of the individuals stopped were armed. Sgt. Garrett could not remember whether or not he personally ever frisked any of these individuals.

Sgt. Duran eventually told Sgt. Garrett that an order had been given to take these individuals back to the 10th Precinct stationhouse for questioning. Sgt. Garrett did not know who gave this order. The group of men asked what was going on and Sgt. Garrett explained to the group that they were waiting for a van to come to take them back to the 10th Precinct stationhouse. None of them complained or made an attempt to leave. Sgt. Garrett considered the group to be detained.

PO Fermin (BR 23) said that an unidentified officer, who PO Fermin believed was a supervisor, told Sgt. Garrett to go across the street to approach a group of males gathered there. The unidentified supervisor did not specify to Sgt. Garrett any further why he wanted them to approach. PO Fermin was not directly present for Sgt. Garrett's conversation with this unidentified supervisor and did not hear exactly what the unidentified supervisor told Sgt. Garrett. Sgt. Garrett in turn told PO Fermin, "We're going to stop that group." These six males were standing directly in front of the entrance to § 87(2)(b), so that passersby had to move through the group to enter the building.

PO Fermin and Sgt. Garrett approached the group with Sgt. Duran, PO Suero, and PO Zappulla. PO Fermin and Sgt. Garrett walked through the rear entrance of the building approached the group from behind, while Sgt. Duran, PO Suero, and PO Zappulla approached from the front of the building in the event that any member of the group attempted to flee. Upon approach, PO Fermin had no idea if any member of the group was a suspect of a crime. PO Fermin's intent upon approach was simply to hold the group there.

Upon approach, PO Fermin and Sgt. Garrett asked if the group had seen anything. The group as a whole responded that they had not. PO Fermin and Sgt. Garrett had the group stand closer to the wall to permit the free flow of foot traffic in and out of the building. The officers then asked for identification, which they all provided, except for one person. The group was in general compliant. PO Fermin could not remember anything that they said during this time. One of the individuals – PO Fermin could not remember which – was found to have a warrant.

PO Fermin thought he might have frisked some of these individuals. PO Fermin did not specifically remember doing so. PO Fermin had no indication that any of these males was armed aside from their proximity to the scene of a shooting. PO Fermin thought it was possible that other officers frisked other civilians, but he did not specifically know. PO Fermin then thought that one member of the group attempted to leave but that an officer, who PO Fermin later identified as Sgt. Duran – said, "Wait. We gotta see what [the aforementioned unidentified supervisor] wants to do with the group." Either Sgt. Duran or Sgt. Garrett then announced that the group would be brought back to the 10th Precinct stationhouse for questioning and then released.

PO Suero (BR 24) said that while standing on the south side of § 87(2)(b), where the crime scene was, he observed the group of approximately seven males standing on the steps at the entrance of § 87(2)(b). All seven of them were grouped together; none of them were standing apart. PO Suero wanted to canvass for witnesses of the shooting, and so approached the group with Sgt. Duran. PO Suero did not remember having any indication from a female passerby that these males had been at the scene of the shooting. Upon approach, an officer – PO Suero could not remember which – asked if they knew what had happened. The group in unison responded that they had been in the courtyard. No further questions were directed to the group about what happened. The group collectively agreed to go back to the 10th Precinct stationhouse for questioning in regards.

PO Suero was waiting on scene for approximately 15 minutes on the steps with the group, waiting for the van to arrive. PO Suero did not request the identifications of any of these individuals, and did not see any officers do so. PO Suero did not remember any member of the group having an open warrant. No member of the group protested the wait, or asked why they needed to go back to the 10th Precinct stationhouse. PO Suero denied frisking any member of the group, or seeing any officer do so, and believed that no physical contact was made with any

member of the group whatsoever. When the van came, PO Suero walked with the males to the van. PO Suero was about 10 feet behind the group walking over to the van. PO Suero never heard any member of the group ask why they needed to go back to the 10th Precinct stationhouse if they were not under arrest. PO Suero never told any member of the group, “You can go back to the stationhouse willingly or you can go in handcuffs.” PO Suero never heard any officer say this. PO Suero remained at the scene of the shooting and did not go back to the 10th Precinct stationhouse. PO Suero did not recognize the CCRB photograph of § 87(2)(b).

PO Zappulla (BR 25) said that he was standing on the southern side of § 87(2)(b) when he noticed two plainclothes officers who he could not identify standing with a group of approximately seven males on the landing at the front of § 87(2)(b). As the officers were outnumbered, PO Zappulla decided to approach to make sure everything was fine, though the group appeared to be behaving calmly. PO Zappulla approached without his partner, Sgt. Clark, who remained on the southern side of § 87(2)(b). PO Zappulla stood on the steps about six to eight feet from the group. The two plainclothes officers were speaking with the civilians, but PO Zappulla could not remember what was discussed. PO Zappulla did not speak to the group himself. PO Zappulla never frisked any member of the group, or ever saw any officers do so. PO Zappulla had no indication that any member of the group might have been armed. PO Zappulla denied making physical contact with any member of the group, or indeed having any interaction with them whatsoever. PO Zappulla did not request their identifications, or see any officer do so. PO Zappulla did not remember any member of the group having a warrant and being placed into handcuffs.

PO Zappulla knew that Sgt. Garrett and Sgt. Duran were present at the scene of the shooting, but did not remember seeing them with this particular group. PO Zappulla stood on the steps near the group for approximately 10 or 15 minutes before a marked police van arrived. PO Zappulla assumed that the males were being brought back to the 10th Precinct stationhouse for questioning in regards to the shooting. PO Zappulla did not actually know for certain that this was the case, as he did not discuss this with any other officer, but assumed it was the case based upon the context. PO Zappulla did not know whether the group was free to leave or not. PO Zappulla did not tell the group whether they were free to leave or not and did not hear any other officer do so. No member of the group ever complained about the wait for the van or otherwise expressed any desire to leave.

When the van arrived, PO Zappulla remained standing on the steps. PO Zappulla did not walk with the group over to the van. PO Zappulla never told any member of the group that they could either go willingly to the 10th Precinct stationhouse or that they could go in handcuffs.

PO Bhairam (BR 26) and PO Testa (BR 27), the two police officers from the 10th Precinct who drove the group of men back to the 10th Precinct stationhouse for questioning, § 87(2)(g). Both said that they were at the 10th Precinct stationhouse taking meal when Lt. Bullock, the platoon commander for that day, requested that they go out to the field to the scene where a shooting had occurred and bring back to the 10th Precinct stationhouse men wanted for questioning in connection with the shooting, as they had been at the scene when the shooting occurred. When PO Bhairam arrived at the scene, a plainclothes, tall, light-skinned Hispanic officer, identified by the investigation as Sgt. Duran, instructed PO Bhairam to escort the group back to the 10th Precinct stationhouse. The group was gathered standing directly at the front entrance of § 87(2)(b). Sgt. Duran had officers who PO Bhairam and PO Testa

could not identify but assumed were from PSA 4 walk the group to the van. PO Bhairam and PO Testa never heard any member of the group complain or express any desire to leave. PO Bhairam and PO Testa never heard any member of the group ask why he had to go back to the stationhouse if he was not considered to be under arrest and never heard any officer reply, “You can either go willingly or in handcuffs.” PO Bhairam and PO Testa never said this to any member of the group themselves. PO Bhairam was unsure how many individuals he escorted back. One of the males had been found to have a warrant, and was in handcuffs when PO Bhairam and PO Testa responded.

Upon return to the 10th Precinct stationhouse, PO Bhairam and PO Testa and the individuals awaited the arrival of the 10th Precinct Detective Squad. The group behaved calmly. Lt. Bullock instructed PO Bhairam and PO Testa to have each of the witnesses write their names and other pedigree information on a plain sheet of paper, which was passed to the 10th Precinct Detective Squad (this paper was not amongst the materials associated with the investigation of the shooting returned from the 10th Precinct Detective Squad (BR 52)).

Lt. Bullock (BR 28), the desk officer at the time of this incident, believed that the shooting occurred at approximately 9 p.m. An unspecified amount of time later, an officer of the 10th Precinct, Sgt. Lamb, called him to request that he send a van to the location to pick up witnesses and bring them back to the 10th Precinct stationhouse for questioning by the 10th Precinct Detective Squad. Lt. Bullock sent PO Bhairam and PO Testa. The witnesses returned with PO Bhairam and PO Testa and were put into the muster room to await questioning by the Detective Squad. Lt. Bullock had no indication that any of these males had been brought back to the 10th Precinct stationhouse against their will, though he noted that eventually some of the family members of these witnesses came to the 10th Precinct stationhouse and demanded their release.

Sgt. Lamb (BR 29) said that he only called Lt. Bullock after he was instructed by another officer, whose identity he could not recall, to request a van for witnesses. Sgt. Lamb was primarily occupied by establishing the crime scene and denied that he approached any witnesses.

The investigation was unable to locate any documentation specific to the stop of these individuals except for a command log entry regarding § 87(2)(b)'s arrival at the 10th Precinct stationhouse (BR 02). No command log entry was prepared regarding the arrival of the other individuals at the 10th Precinct stationhouse. No UF-250 reports were prepared in regards (BR 30 to 33). An ITSD request (BR 34) revealed only that Lt. Bullock conducted a search for warrants for § 87(2)(b) from the 10th Precinct stationhouse.

The memo books of the officers with entries about this incident do not consistently note the time at which the group of men were stopped. PO Suero (BR 35) noted that the stop occurred at 7:50 p.m., but also incorrectly documented the shooting as occurring at 7:15 p.m. PO Fermin (BR 36) and Sgt. Garrett (BR 37) both noted the stop occurred at 8:30 p.m. PO Testa (BR 38) noted that he was called to the location for transport at 9:03 p.m. Other officers, including Sgt. Duran (BR 39), PO Zappulla (BR 40), and PO Bhairam (BR 41) did not prepare memo book entries specific to the stop of these males. The command log entry regarding § 87(2)(b)'s arrest documents that he was brought in at 9:30 p.m. § 87(2)(b) estimated that he was stopped at around 9 p.m.).

A request for information is a general, non-threatening encounter in which an individual is approached for an articulable reason and asked briefly about his or her identity, destination, or reason for being in the area. An officer has the right to make a common-law inquiry if he or she has founded suspicion that criminal activity is afoot. When an officer approaches an individual to make a request for information or a common-law inquiry, that person has the right to walk away from the officer. Restraining an individual's ability to walk away from an encounter constitutes a stop. An officer may stop a person only if he reasonably suspects that person is committing, has committed, or is about to commit a crime. People v. De Bour, 40 N.Y.2d 210 (1976) (BR 42)

A frisk is permissible only if an officer possesses a particularized, reasonable suspicion that a suspect is armed and dangerous. People v. Gonzalez, 295 A.D.2d 183 (2002) (BR 43)

A consensual encounter does not trigger Fourth Amendment scrutiny. Terry v. Ohio, 92 U.S. (1968) (BR 44) The test for determining whether a seizure occurs during the course of a street encounter between the police and a private citizen is whether a reasonable person would have believed, under the circumstances, that the officers' conduct was a significant limitation on his or her freedom. Factors that can be used to assess whether or not a seizure occurred include: was the officer's gun drawn, was the individual prevented from moving, how many verbal commands were given, what was the content and tone of the commands, the language used by the police, how many officers were involved, and where the encounter took place. People v. Bora, 83 N.Y.2d 531 (1994) (BR 45) An interaction is raised to a seizure whenever physical force is used, or, if no physical force is used, the person is submitted to the assertion of authority. People v. Moore, 93 A.D.3d 519 (1st Dept., 2012) (BR 46)

The voluntariness of consent is determined based upon a totality of all circumstances. There are numerous factors that may be used in assessing the totality of the circumstances, including but not limited to the following: whether or not the individual granting consent was in custody or handcuffed, was informed of their right to refuse consent, had previously refused consent, the length of any detention they were subjected to, whether there was any show of force by the officers, etc. The government has no affirmative obligation to advise an individual of their right to deny consent. United States v. Drayton, 536 U.S. 194 (2002) (BR 47) Even when officers have no basis for suspecting criminality, they may ask questions of an individual, provided they do not convey a message that compliance with their requests is required. Florida v. Bostick, 501 U.S. 429 (1991) (BR 48)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

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§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED] it is recommended that
Allegations A, B, and C be closed as **substantiated**.

Allegation D – Abuse of Authority: Sergeant Salvador Duran detained § 87(2)(b) and individuals.

§ 87(2)(g)
[REDACTED]

§ 87(2)(b) said that once his identification was returned to him, he initially felt that he was free to go, as officers told him that no warrants had been found for him and that he was not under arrest. § 87(2)(g)
[REDACTED] § 87(2)(b) nonetheless remained on scene for the next approximately 30 to 40 minutes, a timeline loosely supported by police documentation, including the memo books of Sgt. Garrett, PO Fermin, PO Testa, and the command log. Due to the amount of time § 87(2)(b) was with the officers on scene, he began to feel that he was not free to leave; when § 87(2)(b) questioned the officers, he was told that they were waiting for their Sergeant. It is not alleged that any officer told § 87(2)(b) he was not free to leave, or physically prevented him from leaving, until § 87(2)(b) began to walk over to the van and an officer matching PO Zappulla's description told him he could either go back to the stationhouse willingly or in handcuffs.

§ 87(2)(b) (BR), who was standing close to § 87(2)(b) during this incident, confirmed that officers told the group that they were waiting for their "Sergeant," or "lead detective." § 87(2)(b) never heard any officer tell § 87(2)(b) that he could either go back to the stationhouse willingly or in handcuffs. During § 87(2)(b)'s phone statement (BR), when directly asked if § 87(2)(b) ever heard any officer tell § 87(2)(b) that he could either go back to the

stationhouse willingly or in handcuffs, § 87(2)(b) said he believed he heard an officer say this, but did not know which one.

Sgt. Duran said that the group was offered the option of coming to the stationhouse collectively to be questioned, and that they generally verbally assented. Sgt. Duran initially said that some members of the group seemed more reluctant than others, but later in his statement retracted this and said that in general the group agreed to go back once they learned that they could all go together, rather than be questioned by the Detective Squad individually at a later date. Sgt. Duran denied telling the group that they were not free to leave. Sgt. Duran did not tell the group that they could leave, § 87(2)(g)

Although Sgt. Garrett considered the group to be detained, he said that he explained to them that they were going to be brought back to the 10th Precinct stationhouse for questioning in regards, and that none of them protested or questioned this. PO Fermin said that when an individual attempted to leave, Sgt. Garrett told him, “Wait, we have to see what the [unidentified supervisor] wants to do with you,” and the male complied, and that otherwise none of the individuals in the group protested. § 87(2)(g)

PO Suero testified that he believed the males were free to go, and denied that they were ever told otherwise, or that the males ever protested or questioned officers; PO Zappulla denied having sufficient interaction with the group or with officers to determine whether or not they were free to go, and similarly denied hearing any protestations or questions from the group.

All officers interviewed denied making the threatening comment to any member of the group that they could either go back to the 10th Precinct stationhouse willingly or in handcuffs.

§ 87(2)(g)

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date